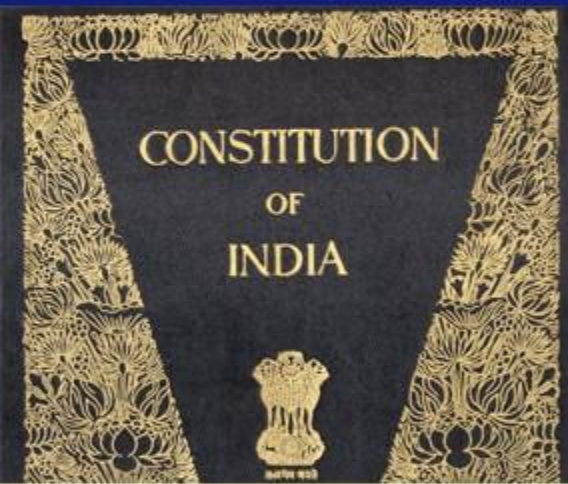


INDIAN POLITY



MODULE - 20

UNION & ITS TERRITORY

- EVOLUTION OF STATES AND UNION TERRITORIES

QUICK RELOOK OF MODULE 19

UNION AND ITS TERRITORY

ARTICLE 3- PARLIAMENT'S POWER TO RE-ORGANISE STATES



- 1 Article 3 authorizes the Parliament to:
 - a) Form a new State by separation of territory from any State or by uniting two or more States or parts of the States or by uniting any territory to a part of any State.
 - b) Increase the area of any State,
 - c) Diminish the area of any State,
 - d) Alter the boundaries of any State and
 - e) Alter the name of any State.

UNION AND ITS TERRITORY

ARTICLE 3- PARLIAMENT'S POWER TO RE-ORGANISE STATES



2

However, Article 3 lays down two conditions in this regard:

1. A Bill contemplating the above changes can be introduced in the Parliament **only with the prior recommendation of the President.**
2. Before recommending the Bill, the President has to refer the same to the **State legislature** concerned for **expressing its views within a specified period.**

UNION AND ITS TERRITORY

ARTICLE 3- PARLIAMENT'S POWER TO RE-ORGANISE STATES



3 The President (or Parliament) is **not bound** by the **views of the State legislature** and may either accept or reject them, even if the views are received in time.

4 Further, it is not necessary to make a fresh reference to the State legislature every time an **amendment to the bill moved and accepted in Parliament**.

5 In case of Union Territory, **no reference need be made to the concerned legislature** to ascertain its views and the Parliament can itself take any action as it deems fit.

UNION AND ITS TERRITORY

ARTICLE 3- PARLIAMENT'S POWER TO RE-ORGANISE STATES

6 It is thus clear that the Constitution authorizes the Parliament to form new States or alter the areas, boundaries or names of the existing States without their consent.

7 In other words, **the Parliament can redraw the political map of India according to its will.**

8 Hence, the territorial integrity or continued existence of any State is not guaranteed by the Constitution. Therefore, **India is rightly described as indestructible union of destructible States.**

9 The Union Government can destroy the states whereas the State Governments cannot destroy the Union.

QUICK RELOOK OF MODULE 19

UNION AND ITS TERRITORY

ARTICLE 3- PARLIAMENT'S POWER TO RE-ORGANISE STATES

10 In USA, on the other hand, the territorial integrity or continued existence of a State is guaranteed by the Constitution.

11 The American federal Government **cannot form new States or alter the borders of the existing States without consent to the States concerned.**

12 That is why the USA is described as **“an indestructible union of indestructible States”.**

13 Moreover, the Constitution (article 4) itself declares that laws made for admission or establishment of new States (under Article 2) and alteration of areas, boundaries or names of existing States (under Articles 3) **are not to be considered a the amendments of the Constitution under Article 368.**

14 Any law referred to in Articles 2 and 3 shall contain such provisions for **the amendment of the 1st and 4th Schedule** as may be necessary.

INDIAN POLITY

UNION AND ITS TERRITORY

ARTICLE 3- PARLIAMENT'S POWER TO RE-ORGANISE STATES

15 This means such laws **can be passed by a simple majority and by the ordinary legislative process.**

16 Does the power of the Parliament to diminish the areas of the State (Under Article 3) include also the power to cede Indian territory to a foreign country?

17 This question came for the examination **before the Supreme court in a reference made by the President in 1960.**

18 The decision of the Central Government to **cede part of a territory known as Berubari Union** (West Bengal) to Pakistan led to political agitation and controversy and thereby necessitated the Presidential reference.

19 The Supreme Court held that the power of the Parliament to diminish the area of the states (Under Article 3) **does not cover cession of Indian territory to a foreign country.**

INDIAN POLITY

UNION AND ITS TERRITORY

ARTICLE 3- PARLIAMENT'S POWER TO RE-ORGANISE STATES

20 Hence, Indian territory can be ceded to a foreign State only by the amending the Constitution under Article 368.

21 Consequently, the 9th Constitutional Amendment Act (1960) was enacted to transfer the said territory to Pakistan.

22 On the other hand the Supreme Court in 1969 ruled that, settlement of a boundary dispute between Indian and another country does not require a Constitutional amendment.

23 It can be done by executive action as it does not involve cession of Indian territory to a foreign country.

24 The 100th Constitutional Amendment Act (2015) was enacted to give effect to the acquiring of certain territories by India and transfer of certain other territories to Bangladesh in pursuance of the agreement and its protocol entered into between the Governments of India and Bangladesh.

25 Under this deal, India transferred 111 enclaves to Bangladesh, while Bangladesh transferred 51 enclaves to India.

UNION AND ITS TERRITORY

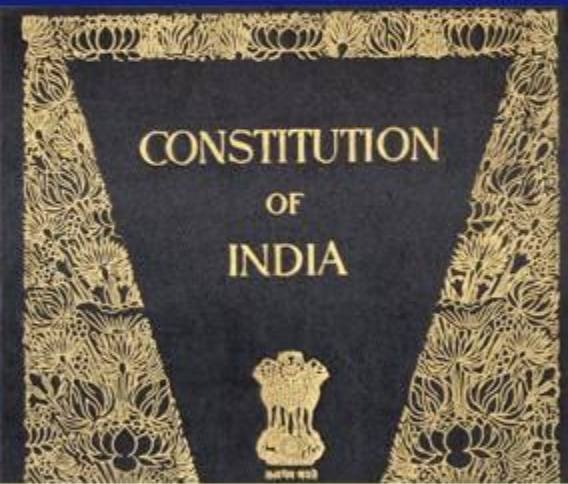
ARTICLE 3- PARLIAMENT'S POWER TO RE-ORGANISE STATES



26 In addition to this, the deal also involved the **transfer of adverse possessions** and the demarcation of **6.1 km un-demarcated border stretch**.

27 For these purposes, the amendment notified the provisions relating to the territories of four States (Assam, West Bengal, Meghalaya, Tripura) in the first Schedule of the Constitution.

INDIAN POLITY



MODULE - 17

THE PREAMBLE

- INGREDIENTS OF PREAMBLE
- BERUBARI UNION CASE

INDIAN POLITY

UNION AND ITS TERRITORY

ARTICLE NUMBER	SUBJECT
1	Name and territory of the Union
2	Admission or establishment of new states
2A	Sikkim to be associated with the Indian Union- Repealed
3	Formation of new states and alteration of areas, boundaries or names of existing states
4	Laws made under Articles 2 & 3 to provide for the amendment of the First and the Fourth Schedules and supplemental, incidental and consequential matters

EVOLUTION OF STATES AND UNION TERRITORIES INTEGRATION OF PRINCELY STATES



1 At the time of independence, India comprised two categories of political units, namely, the **British provinces** (under the direct rule of British Government) and **the princely States** (under the rule of native princes but subject to the paramountcy of the British Crown).

2 The **Indian Independence Act (1947)** created two independent and separate dominions of India and Pakistan and **gave three options to the princely States** viz. joining India joining Pakistan or remaining independent.

EVOLUTION OF STATES AND UNION TERRITORIES

INTEGRATION OF PRINCELY STATES



3 Of the 552 princely States situated within the geographical boundaries of India, 549 joined India and the remaining three- Hyderabad, Junagarh and Kashmir refused to join India.

4 However, in course of time, they were also integrated with India- Hyderabad by means of police action, Junagarh by means of referendum and Kashmir by the Instrument of Accession.

INDIAN POLITY

EVOLUTION OF STATES AND UNION TERRITORIES

INTEGRATION OF PRINCELY STATES

5 In 1950, the Constitution contained a **four-fold classification** of the State of the Indian Union- **Part A, Part B, Part C, Part D state.**

6 **Part A** states comprised of the nine erstwhile **Governor's provinces** of British India.

7 **Part-B** States consisted of nine erstwhile **princely States** with legislatures.

8 **Part-C** States consisted of erstwhile **Chief Commissioner's provinces** of **British India** and some of the erstwhile princely States.

9 These **Part-C** states (in all 10 in number) were centrally administered.

10 The **Andaman and Nicobar Islands** were kept as the solitary **Part-D State.**

EVOLUTION OF STATES AND UNION TERRITORIES

DHAR COMMISSION AND JVP COMMITTEE

- 1 The integration of Princely States with the rest of India has purely an **ad hoc arrangement**.
- 2 There has been a demand from different regions, **particularly South for reorganization of States on linguistic basis**.
- 3 Accordingly, in June 1948, the Government of India appointed the **Linguistic Provinces Commission under the Chairmanship of S.K.Dhar** to examine the feasibility of this.
- 4 The Commission submitted its report in December 1948 and recommended the reorganization of states on the basis of **administrative convenience rather than linguistic factor**.

EVOLUTION OF STATES AND UNION TERRITORIES

DHAR COMMISSION AND JVP COMMITTEE



**PATTABI
SITARAMAYYA**

- 5** This created **much resentment** and led to the appointment of another Linguistic Provinces Committee by the Congress in December 1948 itself to examine the question afresh.
- 6** It consisted of **Jawaharlal Nehru, Vallabhbhai Patel and Pattabi Sitaramayya** and hence, was popularly known as **JVP Committee**.
- 7** Its submitted its report in April 1949 and formally rejected language as the basis for reorganisation of States.

EVOLUTION OF STATES AND UNION TERRITORIES

DHAR COMMISSION AND JVP COMMITTEE



**POTTI
SRIRAMULU**

8 However, in October 1953, the Government of India was forced to create the **first linguistic State known as Andhra State**, by separating the Telugu speaking areas from the Madras State.

9 This followed a prolonged popular agitation and **the death of Potti Sriramulu**, a Congress person of standing, after a 56-day hunger strike for the cause.

EVOLUTION OF STATES AND UNION TERRITORIES

FAZI ALI COMMISSION



FAZL ALI

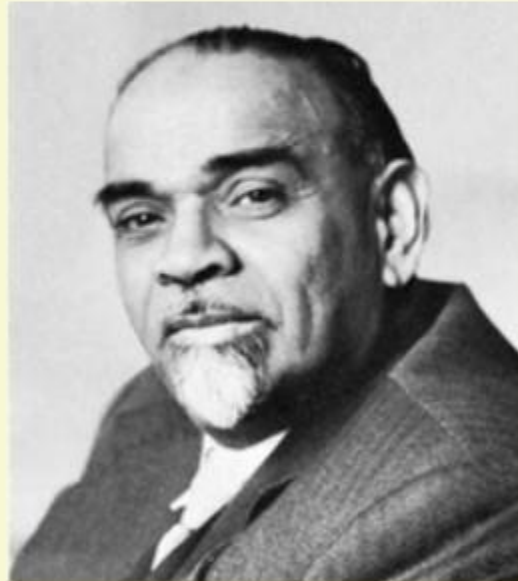
- 1** The creation of Andhra State intensified the demand from other regions for creation of States on linguistic basis.
- 2** This forced the Government of India to appoint (in December 1953) a three-member **States Reorganisation Commission** under the Chairmanship of **Fazl Ali** to re-examine the whole question.

INDIAN POLITY

EVOLUTION OF STATES AND UNION TERRITORIES

FAZI ALI COMMISSION

- 3** Its other two members were K.M Panikkar and H.N.Kunzru. It submitted its report in September 1955 and broadly accepted language as the basis of reorganisation of States.



K.M PANIKKAR



H.N.KUNZRU

EVOLUTION OF STATES AND UNION TERRITORIES

FAZI ALI COMMISSION

4 But, it rejected the theory of “One Language- One State”. Its view was that the unity of India should be regarded as the primary consideration in any redrawing of the country’s political units.

5 It identified **four major factors** that can be taken into account in any scheme of reorganization of States:

- a) Preservation and strengthening of the unity and security of the country.
- b) Linguistic and cultural homogeneity.
- c) Financial, economic and administrative considerations.
- d) Planning and promotion of the welfare of the people in each State as well as of the nation as a whole.

EVOLUTION OF STATES AND UNION TERRITORIES

FAZI ALI COMMISSION

- 6** The Commission suggested the **abolition of the four-fold classification of States** under the original constitution and creation of 16 States and 3 Centrally administered territories.
- 7** The Government of India accepted these recommendations with certain minor modifications.
- 8** By the **States Reorganisation Act (1956)**, and the **7th Constitutional Amendment Act (1956)**, the distinction between Part-A and Part-B State was done away with and Part-C States were abolished.
- 9** Some of them were merged with adjacent States and some other were designated as union territories. As a result, 14 States and 6 Union territories were created on November 1, 1956.

INDIAN POLITY

S.No	STATES	UNION TERRITORIES
1	Andhra Pradesh	Andaman and Nicobar Islands
2	Assam	Delhi
3	Bihar	Himachal Pradesh
4	Bombay	Laccadive, Minicoy and Amindivi Islands
5	Jammu and Kashmir	Manipur
6	Kerala	Tripura
7	Madhya Pradesh	
8	Madras	
9	Mysore	
10	Orissa	
11	Punjab	
12	Rajasthan	
13	Uttar Pradesh	
14	West Bengal	

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